

however that a request to correct the designation of the opponent in the notice of opposition was allowable under R. 139, first sentence, EPC provided that it complies with the principles endorsed in G 1/12. Hence, the original intention at the time of filing the opposition could also be established on the basis of evidence submitted after expiry of the opposition period. See also the summaries of T 615/14 and T 579/16 in section d) below.

Deficiencies such as a wrong postal code or lack of signature may be subsumed under R. 76(2)(a) and R. 50(3), EPC, respectively, and can thus be remedied within a time limit set by the opposition division in accordance with R. 77(2), EPC. The opposition division can extend this time limit or set a new time limit if deemed appropriate (T 1632/06, T 244/12). See also the cases in this chapter IV.C.2.2.9 b) "Signature" below.

b) Incorrect designations and abbreviations

In T 870/92 of 8 August 1997 the board emphasised that, when indicating a legal entity, failure to use its exact official designation (R. 26(2)(c), EPC 1973 and R. 61a, EPC 1973; R. 41(2)(c) and R. 86, EPC) did not necessarily mean that the opposition was inadmissible. An incorrect designation which nevertheless sufficed to indicate the party's identity had to be distinguished from the absence of such information. Errors in a designation could be corrected at any time (R. 88, first sentence, EPC 1973; R. 139, first sentence, EPC; see also T 828/98 and T 719/09).

In principle, the use of an abbreviation instead of the full name of a legal entity does not render an opposition inadmissible as long as the party's identity can be established. In T 1034/08, the board had no reasonable doubt that the abbreviation GSK stood for GlaxoSmithKline with regard to the identity of the Belgium-based opponent GSK Biologicals. Given that Belgian company law allows the co-existence of more than one company name and that GlaxoSmithKline Biologicals was the company's sole primary name, the board concluded that abbreviation GSK Biologicals did not constitute an incorrect designation of the opponent.

c) Evidence of identity

In T 1165/03 the board regarded an identity card or passport as the best **evidence** of identity but with the same proviso as applies to all evidence, i.e. that its value could be offset or even negated by other evidence. In this case, two partly illegible photocopies of different identity cards and inconsistent explanations had been filed. The board therefore held that the identity card evidence was inherently unreliable and inconclusive.

Questioning the identity of an opponent is not enough to render the opposition inadmissible; cogent evidence must be put forward. In T 4/05 no such case was made. The appellant had not filed the extract from the commercial register which, it submitted during oral proceedings before the board, showed a different company name. This could therefore not be cited as evidence that the opponent's identity was unclear. The appellant's objection that two other companies were trading at the same address as the opponent also failed.

In T. 1426/13 the opposition had been filed on behalf of "Isarpatent GbR". The board noted that the lack of public registration of a **GbR** ("Gesellschaft bürgerlichen Rechts") could contribute to uncertainty or even confusion about the name and/or identity of a GbR at specific points in time. However, the EPO had to accept that such **unregistered legal entities** may be a party in proceedings before the EPO. Any relevant evidence had to be evaluated according to the principle of free and unfettered consideration of evidence (e.g. T. 482/89, OJ 1992, 646). From the documents submitted the board was satisfied that a name change had occurred before the opposition was filed and that no other entity than Isarpatent GbR could have been the opponent. Nor was the admissibility of the opposition affected by any changes in the composition of the GbR after the opposition had been filed. A GbR may be held liable for its obligations, including costs which may be awarded to another party in EPO opposition proceedings. Therefore it was not necessary to determine the individual members (T. 482/02 of 9 February 2005 distinguished).

In T. 2439/17, the board considered the filed register extract to be evidence of the company's existence. The appellant had failed to cast any plausible doubt on this. The board further observed that neither being well known nor demonstrable business activity were among the EPC requirements for obtaining the status of opponent.

d) Availability of Rule 139 EPC to rectify errors

According to T. 1551/10, for an opposition to be admissible, the opponent has to be **identifiable** by expiry of the opposition period (T. 25/85, OJ 1986, 81), and provided this is the case, wrong information can be corrected (T. 219/86, OJ 1988, 254; T. 870/92). Extracts from the commercial register showed that Swisscom (Schweiz) AG was the (sole) universal successor in title to Swisscom Mobile AG, which was originally named as the opponent, although it had already been removed from the register before the opposition was filed. It was not apparent that any of Swisscom Mobile AG's business assets had been taken over by any other legal entity. Therefore, Swisscom (Schweiz) AG was clearly and unambiguously identifiable as the opponent by the time the opposition period ended. Procedural statements mistakenly made in the name of a deceased party or of a legal person that no longer existed following a merger could be regarded as having been made in the name of their universal successor in title (T. 15/01, OJ 2006, 153). The mistake in the opponent's name could therefore be corrected under R. 139 EPC. See however T. 1226/13 in which the board requested additional evidence concerning the true intention of the person on whose behalf the opposition was filed.

In T. 1269/11 the board held that both R. 77 and R. 139 EPC were available in principle to rectify errors in the name of the respondent (opponent) as given in the notice of opposition (by analogy with G. 1/12, OJ 2014, A114, concerning correction of the wrong identification of the appellant and summarised in chapter V.A.2.5.2.a). However, there was not sufficient evidence to allow a correction in this case.

The availability of R. 139 EPC to correct the name of the opponent (irrespective of the question of identifiability of the opponent, which was not discussed) was confirmed by T. 615/14 as follows. A request to correct the designation of the opponent in the notice of opposition is allowable under R. 139, first sentence, EPC provided that it complies with the

principles endorsed in G 1/12 (OJ 2014, A114), in particular that the correction must introduce what was originally intended when filing the notice of opposition, that it does not give effect to a change of mind or development of plans and that it represents the opponent's actual rather than ostensible intention. The original intention at the time of filing the opposition can also be established on the basis of evidence submitted after the expiry of the opposition period. See also T 603/15 and also T 1226/13, which emphasises the heavy burden of proof required (with reference to G 1/12, OJ 2014, A114 and J 8/80, OJ 1980, 293).

In T 2254/14, the board first of all investigated whether the opponent had been duly identifiable on expiry of the opposition period and found that the particulars provided had indeed been inconsistent in that the trading name given in the notice of opposition (EPO Form 2300) could be associated to a different legal person from the one named in the attached statement of grounds. Citing G 1/12 (OJ 2014, A114), however, it held that this could be corrected under R 139 EPC. The board considered that the criteria set out in that decision, in particular in point 37 of the Reasons, were met.

In T 579/16 too, the board, having first of all found that the opponent had not been clearly identifiable from the documents submitted prior to expiry of the opposition period, confirmed that an opponent's name could be corrected under R 139, first sentence, EPC where the conditions set out in G 1/12 (OJ 2014, A114) were met. Drawing on the wording of Section 121(1) of the German Civil Code, it interpreted the condition that the correction request be filed "without delay" to mean that it had to be filed "without culpable delay" ("ohne schuldhaftes Zögern"), i.e. how promptly a requester could reasonably be expected to act had to be assessed subjectively rather than objectively. The answer therefore depended not only on any special circumstances of the specific case having to be taken into account in line with J 16/08 but also on the knowledge and personal perspective of the person making the request. The board held that the request at issue had been made without delay. For a case where the request for correction was rejected for the reason that condition d) of point 37 of the Reasons in G 1/12 was not considered to be fulfilled, see T 603/15.

This line was also taken in T 1755/14, where the entity in the name of which the opposition was filed **ceased to exist** before this filing so that no opposition status was acquired which could be transferred as requested. However, having examined the requirements established in G 1/12 (point 37 of the Reasons), the board considered that the request for correction of the error was allowable.

In T 1638/14 the notice of opposition was not accompanied by form 2300 and the information regarding the opponent's identity in the header and the body text of this notice was contradictory. In the board's view, by the end of the opposition period, the opponent had not been unambiguously identified. The opponent's request for correction under R 139, first sentence, EPC was refused as the conditions set out in G 1/12 (OJ 2014, A114) were not fulfilled.

2.2.5 Sufficient identification of the opposed patent

Under R. 76(2)(b) EPC, the notice of opposition must contain, inter alia, the number of the patent, the name of the proprietor and the title of the invention. If the patent is not sufficiently **identified**, the opposition must be rejected as inadmissible under R. 77(1) EPC, unless the deficiency has been remedied before expiry of the opposition period.

In T. 317/86 (OJ 1989, 378) the opponent had not indicated the title of the invention within the period specified under R. 56(2) EPC 1973 (R. 77(2) EPC) for remedying deficiencies other than those falling under R. 56(1) EPC 1973 (R. 77(1) EPC). The board decided that omission from the notice of opposition of the title of the invention – merely an item of bibliographical data identifying the contested patent – did not constitute a deficiency within the meaning of R. 56(2) EPC 1973, if the other particulars available to the EPO were together sufficient to identify easily and beyond doubt the patent being contested by means of an opposition.

In T. 335/00 and T. 336/00, the R. 55(b) EPC 1973 (R. 76(2)(b) EPC) requirements were not strictly fulfilled. Among other things, the title of the invention was missing, and the opposition was directed to the application. The board nonetheless deemed the opposition admissible because the contested patent was identifiable uniquely and fairly easily on the basis of the specified publication number.

2.2.6 Statement of extent of opposition

The Enlarged Board of Appeal remarked in G. 9/91 (OJ 1993, 408) that in practice it is rather unusual that the opposition is limited to only a certain part (subject-matter) of the patent. Normally, the whole of the patent is opposed. Addressing the situation where it was clear from the statement under R. 55(c) EPC 1973 (R. 76(2)(c) EPC) that the patent was opposed only to a certain extent, the Enlarged Board held that by limiting the extent to which the patent is opposed to only certain subject-matters, the opponent deliberately refrains from making use of his right under the EPC to oppose remaining subject-matters covered by the patent. Such subject-matters are therefore, strictly speaking, not subject to any "opposition" in the sense of Art. 101 and 102 EPC, nor are there any "proceedings" in the sense of Art. 114 and 115 EPC concerning such non-opposed subject-matters. The statements in the notice of opposition relevant to the extent to which the European patent is opposed should be interpreted in such a way that an addressee would understand them, taking into account the surrounding circumstances (T. 376/90, OJ 1994, 906; see also T. 1/88, in which the board based its interpretation of equivocal procedural acts on the "objective value of the declaration", German: "objektiver Erklärungswert"). However, the general practice of interpreting the **absence of such statements** as an indication of the opponent's intention to oppose the patent concerned in its entirety, has been subject to scrutiny in the light of G. 9/91. In T. 376/90 the board doubted that this "liberal" practice could be continued. In the extreme, where the extent to which a patent is opposed is in serious doubt, this reviewed approach may lead to a rejection of the opposition as inadmissible (T. 376/90). However, in T. 764/06 the board concluded from the absence of a statement under R. 55(c) EPC 1973 (that the patent was opposed only to a certain

extent) that the patent in suit was opposed in its entirety. In **T 570/14** the board considered that the question whether claims 5 to 7 were covered by the extent of the opposition was not a question of admissibility.

2.2.7 Statement of grounds for opposition

The notice of opposition must also state the grounds on which the opposition is based (R. 76(2)(c) EPC; R. 55(c) EPC 1973). The grounds for opposition which can form the legal basis of an opposition are contained in an exhaustive list in Art. 100 EPC. Accordingly, an opposition may only be filed on the grounds that (a) the subject-matter of the European patent is not patentable, (b) the European patent does not sufficiently disclose the invention or (c) the subject-matter of the European patent goes beyond what was originally disclosed.

The Enlarged Board of Appeal set out a number of fundamental principles in **G 1/95** (OJ 1996, 615):

Whereas the grounds for opposition in Art. 100(b) and (c) EPC 1973 each relate to a single, separate and clearly delimited legal basis on which an opposition can be based, i.e. insufficient disclosure or unallowable amendment before grant, the same does not apply to Art. 100(a) EPC 1973. Art. 100(a) EPC 1973 not only refers to the general definition of patentable inventions under Art. 52(1) EPC 1973 and the exceptions to patentability under Art. 53 EPC 1973; it also refers to a number of definitions given in Art. 52(2) to (4) and 54 to 57 EPC 1973 for the terms "invention", "novelty", "inventive step" and "industrial application", which, when used in conjunction with Art. 52(1) EPC 1973, set specific requirements and therefore constitute separate grounds for opposition. Taken together, Art. 52 to 57 EPC 1973 therefore do not, for the purposes of Art. 100(a) EPC 1973, constitute a single objection to the maintenance of the patent, but a collection of different objections. Some of these are completely independent of each other (e.g. Art. 53 and 52(1) EPC 1973, Art. 54 EPC 1973) whereas others might be more closely related (e.g. Art. 52(1) and 54 EPC 1973; Art. 52(1) and 56 EPC 1973). For an opposition to be admissible under Art. 100(a) EPC 1973, it has to be based on **at least one of the grounds for opposition** set out in Art. 52 to 57 EPC 1973.

According to the reasoning of **G 1/95**, one function of R. 55 and 56 EPC 1973 (R. 76 and 77 EPC) is to establish what the notice of opposition has to contain in order to be admissible. R. 76(2)(c) EPC specifies that the notice of opposition has to contain a statement of the extent to which the European patent was opposed and of the grounds (i.e. the legal reasons mentioned above) on which the opposition is based and an indication of the facts, evidence and arguments presented in support of these grounds, i.e. the substantiation. The wording of (c) shows clearly the distinction made between the grounds, meaning the legal reasons or legal bases such as those under Art. 100(a) EPC and the substantiation. Accordingly, in the context of Art. 99 and 100 EPC and of R. 76(2)(c) EPC, a "ground for opposition" has to be interpreted as meaning an individual legal basis for an objection to the maintenance of a patent. It follows in particular that Art. 100(a) EPC contained a collection of different legal objections (i.e. legal bases), or different grounds for opposition, and is not directed to a single ground for opposition.